

Effective 1/1/2027

Chapter 72c

Digital Content Provenance Standards Act

Effective 1/1/2027

Part 1

General Provisions

Effective 1/1/2027

13-72c-101 Definitions.

As used in this chapter:

- (1) "Artificial intelligence" means a machine-based system that makes predictions, recommendations, or decisions influencing real or virtual environments.
- (2) "Capture device" means a device that can record photographs, audio, or video content, including a video camera, a still photography camera, a mobile phone with a built-in camera or microphone, or a voice recorder.
- (3)
 - (a) "Capture device manufacturer" means a person who produces a capture device for sale in the state.
 - (b) "Capture device manufacturer" does not include a person exclusively engaged in the assembly of a capture device.
- (4) "Compliant system provenance data" means system provenance data that is compliant with widely adopted specifications of an established standards-setting body.
- (5)
 - (a) "Covered provider" means a person that creates, codes, or otherwise produces a generative artificial intelligence system that:
 - (i) has over 1,000,000 monthly visitors or users; and
 - (ii) is publicly accessible within the geographic boundaries of the state.
 - (b) "Covered provider" does not include a person that creates, codes, or otherwise produces a generative artificial intelligence system that is used exclusively for the person's internal business operations and is not made publicly accessible.
- (6) "Digital signature" means a cryptography-based method that identifies the user or entity that attests to the information provided in the signed section.
- (7) "Generative artificial intelligence system" means an artificial intelligence system that can generate derived synthetic content, including text, images, video, or audio, that emulates the structure and characteristics of the system's training data.
- (8)
 - (a) "Large online platform" means a public-facing social media platform, mass messaging platform, or stand-alone search engine that distributes content to users who did not create or collaborate in creating the content and that exceeded 2,000,000 unique monthly users during the preceding 12 months.
 - (b) "Large online platform" does not include:
 - (i) a broadband internet access service, as defined in 47 C.F.R. Sec. 8.1(b); or
 - (ii) a telecommunications service, as defined in 47 U.S.C. Sec. 153.
- (9) "Latent" means present but not manifest.
- (10) "Manifest" means easily perceived, understood, or recognized by a natural person.

- (11) "Mass messaging platform" means a direct messaging platform that allows users to distribute content to more than 100 users simultaneously.
- (12) "Metadata" means structural or descriptive information about data.
- (13) "Personal information" means the same as that term is defined in Section 13-61-101.
- (14) "Provenance data" means data that is embedded into digital content, or that is included in the digital content's metadata, for the purpose of verifying the digital content's authenticity, origin, or history of modification.
- (15) "System provenance data" means provenance data that is not reasonably capable of being associated with a particular user and that contains:
 - (a) information regarding the type of device, system, or service that was used to generate a piece of digital content; or
 - (b) information related to content authenticity.
- (16) "User" means a Utah resident who accesses, interacts with, or uses an interactive computer service, platform, generation service, generative artificial intelligence system, or capture device.
- (17) "User interface" means the method by which an individual interacts with, controls, or receives information from a computer, software application, website, or electronic device.

Enacted by Chapter 352, 2026 General Session

Effective 1/1/2027

Part 2

Content Provenance Standards And Requirements

Effective 1/1/2027

13-72c-201 Requirements for large online platforms.

- (1) A large online platform shall:
 - (a) detect whether compliant system provenance data is embedded into or attached to content distributed on the large online platform;
 - (b) provide a user interface to disclose the availability of system provenance data; and
 - (c) allow a user to inspect all available compliant system provenance data in an easily accessible manner:
 - (i) directly through the large online platform's user interface described in Subsection (1)(b);
 - (ii) by allowing the user to download the content's compliant system provenance data; or
 - (iii) by providing a link to the content's system provenance data displayed on an internet website or in another application provided either by the large online platform or a third party.
- (2) A large online platform may not, to the extent technically feasible, knowingly strip any system provenance data or digital signature that is compliant with widely adopted specifications adopted by an established standards-setting body from content uploaded or distributed on the large online platform.

Enacted by Chapter 352, 2026 General Session

Effective 1/1/2027

13-72c-202 Requirements for capture devices.

- (1) A capture device manufacturer shall include a latent disclosure in content captured by the capture device that conveys:

- (a)
 - (i) the name of the capture device manufacturer; or
 - (ii) digital signatures sufficient to prove whether the content was created using a type of capture device; and
- (b) the time and date of the content's creation or alteration.
- (2) A capture device manufacturer may provide a user with the option to disable the latent disclosure on a capture device required in Subsection (1).
- (3) A capture device manufacturer shall comply with this section only to the extent technically feasible and compliant with widely adopted specifications adopted by an established standards-setting body.
- (4) This section applies to any capture device a capture device manufacturer produces for sale in the state on or after January 1, 2028.

Enacted by Chapter 352, 2026 General Session

Effective 1/1/2027

13-72c-203 User disclosures.

A covered provider shall include a latent disclosure in image, video, or audio content, or content that is any combination of image, video, or audio, created or substantially modified by the covered provider's generative artificial intelligence system that meets the following criteria:

- (1) to the extent that it is technically feasible and reasonable, the disclosure conveys the following information, either directly or through a link to a permanent internet website:
 - (a) the time and date of the content's creation or alteration; and
 - (b) either:
 - (i) the name of the capture device manufacturer; or
 - (ii) digital signatures sufficient to prove whether the content was created or substantially altered using a generative artificial intelligence system; and
- (2) the disclosure is consistent with widely accepted industry standards.

Enacted by Chapter 352, 2026 General Session

Effective 1/1/2027

**Part 3
Enforcement**

Effective 1/1/2027

13-72c-301 Enforcement -- Civil liability.

- (1) The Division of Consumer Protection shall administer and enforce the provisions of Part 2, Content Provenance Standards and Requirements in accordance with Chapter 2, Division of Consumer Protection.
- (2) In addition to the division's enforcement powers under Chapter 2, Division of Consumer Protection:
 - (a) the division director may impose an administrative fine of up to \$2,500 for each violation of this chapter; and
 - (b) the division may bring an action in a court of competent jurisdiction to enforce a provision of this chapter.

- (3) In a court action by the division to enforce a provision of this chapter, the court may:
 - (a) declare that an act or practice violates a provision of this chapter;
 - (b) issue an injunction for a violation of this chapter;
 - (c) order disgorgement of money received in violation of this chapter;
 - (d) order payment of disgorged money to an injured purchaser or consumer;
 - (e) impose a fine of up to \$2,500 for each violation of this chapter; or
 - (f) award other relief that the court determines reasonable and necessary.
- (4) If a court awards judgment or injunctive relief to the division, the court shall award the division:
 - (a) reasonable attorney fees;
 - (b) court costs; and
 - (c) investigative fees.
- (5) A court may impose a civil penalty of no more than \$5,000 for each violation of an administrative or court order issued for a violation of this chapter.
- (6) The attorney general may bring a civil action on behalf of the division to collect a civil penalty imposed under this section.
- (7) The division shall deposit all fines and civil penalties collected under this section into the Consumer Protection Education and Training Fund created in Section 13-2-8.
- (8) Nothing in this chapter shall displace any other available remedies or rights authorized under the laws of this state or the United States.

Enacted by Chapter 352, 2026 General Session